

**SUBSTITUTE FOR
HOUSE BILL NO. 5803**

A bill to amend 1973 PA 116, entitled
"An act to provide for the protection of children through the
licensing and regulation of child care organizations; to provide
for the establishment of standards of care for child care
organizations; to prescribe powers and duties of certain
departments of this state and adoption facilitators; to provide
penalties; and to repeal acts and parts of acts,"
by amending section 1 (MCL 722.111), as amended by 2024 PA 50.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

- 1 Sec. 1. (1) As used in this act:
- 2 (a) "Child care staff member" means an individual who is 16
- 3 years of age or older to whom 1 or more of the following apply:
- 4 (i) The individual is employed by a child care center, group
- 5 child care home, or family child care home for compensation,



1 including a contract employee or a self-employed individual.

2 (ii) An individual whose activities involve the unsupervised
3 care or supervision of children for a child care center, group
4 child care home, or family child care home.

5 (iii) An individual who has unsupervised access to children who
6 are cared for or supervised by a child care center, group child
7 care home, or family child care home.

8 (iv) An individual who acts in the role of a licensee designee
9 or program director.

10 (b) "Child care organization" means a governmental or
11 nongovernmental organization having as its principal function
12 receiving minor children for care, maintenance, training, and
13 supervision, notwithstanding that educational instruction may be
14 given. Child care organization includes organizations commonly
15 described as child caring institutions, child placing agencies,
16 children's camps, children's campsites, children's therapeutic
17 group homes, child care centers, day care centers, nursery schools,
18 parent cooperative preschools, foster homes, group homes, or child
19 care homes. Child care organization does not include a governmental
20 or nongovernmental organization that does either of the following:

21 (i) Provides care exclusively to minors who have been
22 emancipated by court order under section 4(3) of 1968 PA 293, MCL
23 722.4.

24 (ii) Provides care exclusively to individuals who are 18 years
25 of age or older and to minors who have been emancipated by court
26 order under section 4(3) of 1968 PA 293, MCL 722.4, at the same
27 location.

28 (c) "Child caring institution" means a child care facility
29 that is organized for the purpose of receiving minor children for



1 care, maintenance, and supervision, usually on a 24-hour basis, in
2 buildings maintained by the child caring institution for that
3 purpose, and operates throughout the year. An educational program
4 may be provided, but the educational program must not be the
5 primary purpose of the facility. Child caring institution includes
6 a maternity home for the care of unmarried mothers who are minors
7 and an agency group home, that is described as a small child caring
8 institution, owned, leased, or rented by a licensed agency
9 providing care for more than 4 but less than 13 minor children.
10 Child caring institution also includes an institution for
11 developmentally disabled or emotionally disturbed minor children.
12 Child caring institution does not include a hospital, nursing home,
13 or home for the aged licensed under article 17 of the public health
14 code, 1978 PA 368, MCL 333.20101 to 333.22260, a boarding school
15 licensed under section 1335 of the revised school code, 1976 PA
16 451, MCL 380.1335, a hospital or facility operated by the state or
17 licensed under the mental health code, 1974 PA 258, MCL 330.1001 to
18 330.2106, or an adult foster care family home or an adult foster
19 care small group home licensed under the adult foster care facility
20 licensing act, 1979 PA 218, MCL 400.701 to 400.737, in which a
21 child has been placed under section 5(6).

22 (d) "Child caring institution staff member" means an
23 individual who is 18 years of age or older to whom 1 or more of the
24 following apply:

25 (i) The individual is employed by a child caring institution
26 for compensation, including an adult who does not work directly
27 with children.

28 (ii) The individual is a contract employee or self-employed
29 individual with a child caring institution.



1 (iii) The individual is an intern or other individual who
2 provides specific services under the rules promulgated under this
3 act.

4 (e) "Child placing agency" means a governmental organization
5 or an agency organized under the nonprofit corporation act, 1982 PA
6 162, MCL 450.2101 to 450.3192, for the purpose of receiving
7 children for placement in private family homes for foster care or
8 for adoption. The function of a child placing agency may include
9 investigating applicants for adoption and investigating and
10 certifying foster family homes and foster family group homes as
11 provided in this act. The function of a child placing agency may
12 also include supervising children who are at least 16 but less than
13 21 years of age and who are living in unlicensed residences as
14 provided in section 5(4).

15 (f) "Children's camp" means a residential, day, troop, or
16 travel camp that provides care and supervision and is conducted in
17 a natural environment for more than 4 children, apart from the
18 children's parents, relatives, or legal guardians, for 5 or more
19 days in a 14-day period.

20 (g) "Children's campsite" means the outdoor setting where a
21 children's residential or day camp is located.

22 (h) "Children's therapeutic group home" means a child caring
23 institution receiving children who are diagnosed with a
24 developmental disability as defined in section 100a of the mental
25 health code, 1974 PA 258, MCL 330.1100a, or a serious emotional
26 disturbance as defined in section 100d of the mental health code,
27 1974 PA 258, MCL 330.1100d, and that meets all of the following
28 requirements:

29 (i) Provides care, maintenance, and supervision, usually on a



1 24-hour basis.

2 (ii) Has a capacity of not more than 6 children.

3 (iii) Complies with the rules for child caring institutions.

4 Emergency safety intervention in the form of physical management is
5 allowed but must comply with the mental health code, 1974 PA 258,
6 MCL 330.1001 to 330.2106, and associated administrative rules.

7 (iv) Is not a private home.

8 (v) Is not located on a campus with other licensed facilities.

9 (i) "Child care center" means a facility, other than a private
10 residence, receiving 1 or more children under 13 years of age for
11 care for periods of less than 24 hours a day, where the parents or
12 guardians are not immediately available to the child. Child care
13 center includes a facility that provides care for not less than 2
14 consecutive weeks, regardless of the number of hours of care per
15 day. The facility is generally described as a child care center,
16 day care center, day nursery, nursery school, parent cooperative
17 preschool, play group, before- or after-school program, or drop-in
18 center. Child care center does not include any of the following:

19 (i) A Sunday school, a vacation bible school, or a religious
20 instructional class that is conducted by a religious organization
21 where children are attending for not more than 3 hours per day for
22 an indefinite period or for not more than 8 hours per day for a
23 period not to exceed 4 weeks during a 12-month period.

24 (ii) A facility operated by a religious organization where
25 children are in the religious organization's care for not more than
26 3 hours while individuals responsible for the children are
27 attending religious services.

28 (iii) A program that is primarily supervised, school-age-child-
29 focused training in a specific subject, including, but not limited



1 to, dancing, drama, music, or religion. This exclusion applies only
2 to the time a child is involved in supervised, school-age-child-
3 focused training.

4 (iv) A program that is primarily an incident of group athletic
5 or social activities for school-age children sponsored by or under
6 the supervision of an organized club or hobby group, including, but
7 not limited to, youth clubs, scouting, and school-age recreational
8 or supplementary education programs. This exclusion applies only to
9 the time the school-age child is engaged in the group athletic or
10 social activities and if the school-age child can come and go at
11 will.

12 (v) A program that primarily provides therapeutic services to
13 a child.

14 (vi) **A preschool program or classroom located in a public**
15 **school that provides part-day programs, school-day programs, GSRP**
16 **extended programs, GSRP/Head Start school-day blended programs, or**
17 **GSRP/Head Start extended blended programs under section 32d of the**
18 **state school aid act of 1979, 1979 PA 94, MCL 388.1632d. As used in**
19 **this subparagraph, "public school" means that term as defined in**
20 **section 5 of the revised school code, 1976 PA 451, MCL 380.5.**

21 (vii) **A preschool program or classroom located in a nonpublic**
22 **school, as that term is defined in section 5 of the revised school**
23 **code, 1976 PA 451, MCL 380.5.**

24 (j) "Conviction" means a final conviction, the payment of a
25 fine, a plea of guilty or nolo contendere if accepted by the court,
26 a finding of guilt for a criminal law violation or a juvenile
27 adjudication or disposition by the juvenile division of probate
28 court or family division of circuit court for a violation that if
29 committed by an adult would be a crime, or a conviction in a tribal



1 court or a military court.

2 (k) "Criminal history check" means a fingerprint-based
3 criminal history record information background check through the
4 department of state police and the Federal Bureau of Investigation.

5 (l) "Criminal history record information" means that term as
6 defined in section 1a of 1925 PA 289, MCL 28.241a.

7 (m) "Department" means the department of health and human
8 services and the department of licensing and regulatory affairs or
9 a successor agency or department responsible for licensure under
10 this act. The department of licensing and regulatory affairs is
11 responsible for licensing and regulatory matters for child care
12 centers, group child care homes, family child care homes,
13 children's camps, and children's campsites. The department of
14 health and human services is responsible for licensing and
15 regulatory matters for child caring institutions, child placing
16 agencies, children's therapeutic group homes, foster family homes,
17 and foster family group homes.

18 (n) "Drinking fountain" means a plumbing fixture that is
19 connected to the potable water distribution system and drainage
20 system that allows the user to obtain a drink directly from a
21 stream of flowing water without the use of any accessory.

22 (o) "Eligible" means that the individual obtained the checks
23 and clearances described in sections 5n and 5q and is considered
24 appropriate to obtain a license, to be a member of the household of
25 a group child care home or family child care home, or to be a child
26 care staff member.

27 (p) "Faucet" means a valve end of a water pipe by which water
28 is drawn from or held within the pipe.

29 (q) "Filtered bottle-filling station" or "station" means an



apparatus that meets all of the following requirements:

(i) Is connected to customer site piping.

(ii) Filters water and is certified to meet NSF/ANSI standard 53 for lead reduction and NSF/ANSI standard 42 for particulate removal.

(iii) The flow rate through the station is paired to the specified flow rate of the filter cartridge.

(iv) Has a light or other device to indicate filter cartridge replacement status.

(v) Is designed to fill drinking bottles or other containers for personal water consumption.

(vi) Includes a drinking fountain.

(r) "Filtered faucet" means a faucet that at the point of use includes a filter that is certified to meet NSF/ANSI standard 53 for lead reduction and NSF/ANSI standard 42 for particulate removal.

(s) "Filtered pitcher" means a container used for holding and pouring liquids that at the point of use includes a filter that is certified to meet NSF/ANSI standard 53 for lead reduction and NSF/ANSI standard 42 for particulate removal.

(t) "Ineligible" means that the individual obtained the checks and clearances as described in sections 5n and 5q and is not considered appropriate to obtain a license, to be a member of the household of a group child care home or family child care home, or to be a child care staff member due to violation of section 5n, 5q, or 5r.

(u) "Increased capacity" means 1 additional child added to the total number of minor children received for care and supervision in a family child care home or 2 additional children added to the



1 total number of minor children received for care and supervision in
2 a group child care home.

3 (v) "Private home" means a private residence in which the
4 licensee permanently resides, which residency is not contingent
5 upon caring for children or employment by a child placing agency.
6 Private home includes a full-time foster family home, a full-time
7 foster family group home, a group child care home, or a family
8 child care home, as follows:

9 (i) "Foster family home" means the private home of an
10 individual who is licensed to provide 24-hour care for 1 but not
11 more than 4 minor children who are placed away from their parent,
12 legal guardian, or legal custodian in foster care. The licensed
13 individual providing care is required to comply with the reasonable
14 and prudent parenting standard as defined in section 1 of chapter
15 XIIIA of the probate code of 1939, 1939 PA 288, MCL 712A.1.

16 (ii) "Foster family group home" means the private home of an
17 individual who has been licensed by the department to provide 24-
18 hour care for more than 4 but fewer than 7 minor children who are
19 placed away from their parent, legal guardian, or legal custodian
20 in foster care. The licensed individual providing care is required
21 to comply with the reasonable and prudent parenting standard as
22 defined in section 1 of chapter XIIIA of the probate code of 1939,
23 1939 PA 288, MCL 712A.1.

24 (iii) "Family child care home" means a private home in which 1
25 but fewer than 7 minor children are received for care and
26 supervision for compensation for periods of less than 24 hours a
27 day, unattended by a parent or legal guardian, except children
28 related to an adult member of the household. Family child care home
29 includes a home in which care is given to an unrelated minor child



1 for more than 4 weeks during a calendar year. A family child care
2 home does not include an individual providing babysitting services
3 for another individual. As used in this subparagraph, "providing
4 babysitting services" means caring for a child on behalf of the
5 child's parent or guardian if the annual compensation for providing
6 those services does not equal or exceed \$600.00 or an amount that
7 would according to the internal revenue code of 1986 obligate the
8 child's parent or guardian to provide a form 1099-MISC to the
9 individual for compensation paid during the calendar year for those
10 services. Family child care home includes a private home with
11 increased capacity.

12 (iv) "Group child care home" means a private home in which more
13 than 6 but not more than 12 minor children are given care and
14 supervision for periods of less than 24 hours a day unattended by a
15 parent or legal guardian, except children related to an adult
16 member of the household. Group child care home includes a home in
17 which care is given to an unrelated minor child for more than 4
18 weeks during a calendar year. Group child care home includes a
19 private home with increased capacity.

20 (w) "Legal custodian" means an individual who is at least 18
21 years of age in whose care a minor child remains or is placed after
22 a court makes a finding under section 13a(5) of chapter XIIIA of the
23 probate code of 1939, 1939 PA 288, MCL 712A.13a.

24 (x) "Legal entity" means a sole proprietorship, partnership,
25 corporation, limited liability company, or any other entity.

26 (y) "Licensee" means a person, legal entity organized under a
27 law of this state, state or local government, or trust that has
28 been issued a license under this act to operate a child care
29 organization.



1 (z) "Listed offense" means that term as defined in section 2
2 of the sex offenders registration act, 1994 PA 295, MCL 28.722.

3 (aa) "Member of the household" means any individual who
4 resides in a family child care home, group child care home, foster
5 family home, or foster family group home on an ongoing basis, or
6 who has a recurrent presence in the home, including, but not
7 limited to, overnight stays. For foster family homes and foster
8 family group homes, a member of the household does not include a
9 foster child. For group child care homes and family child care
10 homes, a member of the household does not include a child to whom
11 child care is being provided.

12 (bb) "Original license" means a license issued to a child care
13 organization during the first 6 months of operation indicating that
14 the organization is in compliance with all rules promulgated by the
15 department under this act.

16 (cc) "Provisional license" means a license issued to a child
17 care organization that is temporarily unable to conform to the
18 rules promulgated under this act.

19 (dd) "Psychiatric residential treatment facility" or "PRTF"
20 means a facility other than a hospital that provides psychiatric
21 services, as described in 42 CFR 441.150 to 441.184, in an
22 inpatient setting to individuals under the age of 21. Emergency
23 safety intervention in the form of physical management is allowed
24 but must comply with the mental health code, 1974 PA 258, MCL
25 330.1001 to 330.2106, and associated administrative rules.

26 (ee) "Qualified residential treatment program" or "QRTP" means
27 a program within a child caring institution to which all of the
28 following apply:

29 (i) The program has a trauma-informed treatment model,



1 evidenced by the inclusion of trauma awareness, knowledge, and
2 skills into the program's culture, practices, and policies.

3 (ii) The program has registered or licensed nursing and other
4 licensed clinical staff on-site or available 24 hours a day, 7 days
5 a week, who provide care in the scope of their practice as provided
6 in parts 170, 172, 181, 182, 182A, and 185 of the public health
7 code, 1978 PA 368, MCL 333.17001 to 333.17097, 333.17201 to
8 333.17242, 333.18101 to 333.18117, 333.18201 to 333.18237,
9 333.18251 to 333.18267, and 333.18501 to 333.18518.

10 (iii) The program integrates families into treatment, including
11 maintaining sibling connections.

12 (iv) The program provides aftercare services for at least 6
13 months post discharge.

14 (v) The program is accredited by an independent not-for-profit
15 organization as described in 42 USC 672(k)(4)(G).

16 (vi) The program does not include a detention facility,
17 forestry camp, training school, or other facility operated
18 primarily for detaining minor children who are determined to be
19 delinquent.

20 (ff) "Regular license" means a license issued to a child care
21 organization indicating that the organization is in substantial
22 compliance with all rules promulgated under this act and, if there
23 is a deficiency, has entered into a corrective action plan.

24 (gg) "Guardian" means the individual's guardian.

25 (hh) "Minor child" means any of the following:

26 (i) An individual less than 18 years of age.

27 (ii) An individual who is a resident in a child caring
28 institution, foster family home, or foster family group home, who
29 is at least 18 but less than 21 years of age, and who meets the



1 requirements of the young adult voluntary foster care act, 2011 PA
2 225, MCL 400.641 to 400.671.

3 (iii) An individual who is a resident in a child caring
4 institution, children's camp, foster family home, or foster family
5 group home; who becomes 18 years of age while residing in a child
6 caring institution, children's camp, foster family home, or foster
7 family group home; and who continues residing in a child caring
8 institution, children's camp, foster family home, or foster family
9 group home to receive care, maintenance, training, and supervision.

10 A minor child under this subparagraph does not include an
11 individual 18 years of age or older who is placed in a child caring
12 institution, foster family home, or foster family group home under
13 an adjudication under section 2(a) of chapter XIIIA of the probate
14 code of 1939, 1939 PA 288, MCL 712A.2, or under section 1 of
15 chapter IX of the code of criminal procedure, 1927 PA 175, MCL
16 769.1. This subparagraph applies only if the number of those
17 residents who become 18 years of age does not exceed the following:

18 (A) Two, if the total number of residents is 10 or fewer.

19 (B) Three, if the total number of residents is not less than
20 11 and not more than 14.

21 (C) Four, if the total number of residents is not less than 15
22 and not more than 20.

23 (D) Five, if the total number of residents is 21 or more.

24 (iv) An individual 18 years of age or older who is placed in an
25 unlicensed residence under section 5(4) or a foster family home
26 under section 5(7).

27 (ii) "Related" means 1 of the following:

28 (i) Except as provided in subparagraph (ii), a relative as
29 defined in section 13a of chapter XIIIA of the probate code of 1939,



1 1939 PA 288, MCL 712A.13a.

2 (ii) For licensing by the department related to a child care
3 center, children's camp, children's campsite, family child care
4 home, foster family home, foster family group home, or group child
5 care home, in the relationship by blood, marriage, or adoption, as
6 parent, grandparent, great-grandparent, great-great-grandparent,
7 aunt or uncle, great-aunt or great-uncle, great-great-aunt or
8 great-great-uncle, sibling, stepsibling, nephew or niece, first
9 cousin or first cousin once removed, and the spouse of any of the
10 individuals described in this definition, even after the marriage
11 has ended by death or divorce.

12 (jj) "Religious organization" means a church, ecclesiastical
13 corporation, or group, not organized for pecuniary profit, that
14 gathers for mutual support and edification in piety or worship of a
15 supreme deity.

16 (kk) "School-age child" means a child who is eligible to
17 attend a grade of kindergarten or higher, but is less than 13 years
18 of age. A child is considered to be a school-age child on the first
19 day of the school year in which the child is eligible to attend
20 school.

21 (ll) "Severe physical injury" means serious physical harm as
22 that term is defined in section 136b of the Michigan penal code,
23 1931 PA 328, MCL 750.136b.

24 (mm) "Licensee designee" means the individual designated in
25 writing by the board of directors of the corporation or by the
26 owner or person with legal authority to act on behalf of the
27 company or organization on licensing matters. The individual must
28 agree in writing to be designated as the licensee designee. All
29 license applications must be signed by the licensee in the case of



1 the individual or by a member of the corporation, company, or
2 organization.

3 (nn) "Water delivery service" means a service that delivers
4 drinking water to a child care center and provides drinking water
5 that meets the standards of the safe drinking water act, 42 USC
6 300f to 300j-25.

7 (2) A family child care home or group child care home is
8 automatically eligible for increased capacity after satisfying all
9 of the following criteria:

10 (a) Holds a current license.

11 (b) Has been licensed to operate for at least 29 consecutive
12 months.

13 (c) Has received 1 or more unrelated minor children for care
14 and supervision during the licensed period under subdivision (b).

15 (d) Has received a renewed regular license after at least 29
16 months of licensed operation under subdivision (b).

17 (3) The department may rescind increased capacity due to 1 or
18 more of the following:

19 (a) Corrective action.

20 (b) Licensing action.

21 (c) Determination by the department that increased capacity is
22 not conducive to the welfare of children as that term is defined in
23 section 5m.

24 (4) If the department rescinds increased capacity as outlined
25 in subsection (3), the family child care home or group child care
26 home may be considered for increased capacity not less than 22
27 months after rescinding increased capacity in a form and manner
28 determined by the department.

29 (5) A family child care home or group child care home may



1 appeal rescission of increased capacity under a hearing held in the
2 manner provided under section 11(2).